



Notification Waiver Determination

Coles – supermarket site in Byron Bay NSW

Acquisition	Coles Supermarkets Australia Pty Ltd (CSA) applied for a notification waiver in respect of its proposed acquisition of a leasehold interest in a single lot within a new mixed-use development at 148-158 Jonson Street, Byron Bay NSW 2481 (the Target Site), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	2 September 2026

Parties to the Acquisition	Coles Group Limited (Coles) is an Australian public company (ASX: COL) that primarily operates: - supermarkets nationwide through CSA; and - retail liquor stores nationwide, trading under the Liquorland, Liquorland Warehouse and Liquorland Cellars brands. The lessor, JD 156 Jonson Street Pty Ltd, is an Australian private mixed-use development company focused on developing retail and residential developments in the Northern Rivers region. The land subject to the proposed lease is located in Byron Bay, New South Wales. It is the proposed site of a new shopping centre comprising of Coles as an anchor supermarket, specialty retail, wellness and residential apartments. The leasehold interest would be an input into Coles' supermarket retailing operations.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: Coles proposes to open a new supermarket site in Byron Bay, New South Wales, where it does not currently operate; the closest existing Coles supermarket is located more than 15km away from the Target Site

	b. the presence of alternative grocery retailers in and around the surrounding local area, including Woolworths, ALDI, SPAR and IGA c. the Target Site is not currently used for grocery retailing. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds determined under section 51ABP(1) being met. The ACCC observes that the targeted notification requirements for supermarkets determined under section 51ABQ(1) may also apply, but it does not consider it necessary to reach a concluded view in this regard. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act